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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
17/674,281	02/17/2022	Yu Fang	SONA-0007-U01-C01-C02	5975

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EXAMINER	
ALGIBHAH, HAMZA N	

ART UNIT	PAPER NUMBER
2456	

NOTIFICATION DATE	DELIVERY MODE
08/17/2023	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

uspatents@gtclawgroup.com

Office Action Summary	Application No. 17/674,281	Applicant(s) Fang et al.	
	Examiner HAMZA N ALGIBHAH	Art Unit 2456	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 07/25/2023.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☑ This action is **FINAL.** 2b) ☐ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-21 and 24-26 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-21 and 24-26 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 02/17/2022 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☐ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

Detailed Action

1. ***Claims 1-26*** are pending.

2. ***Claims 1-26 are rejected.***

Double Patenting

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on nonstatutory double patenting provided the reference application or patent either is shown to be commonly owned with the examined application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement. See MPEP § 717.02 for applications subject to examination under the first inventor to file provisions of the AIA as explained in MPEP § 2159. See MPEP § 2146 *et seq.* for applications not subject to examination under the first inventor to file provisions of the AIA. A terminal disclaimer must be signed in compliance with 37 CFR 1.321(b).

The USPTO Internet website contains terminal disclaimer forms which may be used. Please visit www.uspto.gov/patent/patents-forms. The filing date of the application in which the form is filed determines what form (e.g., PTO/SB/25, PTO/SB/26, PTO/AIA/25, or PTO/AIA/26) should be used. A web-based eTerminal Disclaimer may be filled out completely online using web-screens. An eTerminal Disclaimer that meets all requirements is auto-processed and approved immediately upon submission. For more information about eTerminal Disclaimers, refer to www.uspto.gov/patents/process/file/efs/guidance/eTD-info-I.jsp.

Claims **1-20** are rejected on the ground of nonstatutory double patenting as being unpatentable over claims **1-10** of U.S. Patent No. 11,252,039. Although the claims at issue are not identical, they are not patentably distinct from each other because the instant claims states a mobile system instead of a vehicle. Since a mobile system can be part of a vehicle, it would have been obvious to one ordinary skill in the art before the effective filing date of the invention to modify the patent in a way to match the instant claimed limitation. In addition, claims 15-20 of the instant application are the method claims corresponding to the patent claims 1-10.

Claims **21-26** are rejected on the ground of nonstatutory double patenting as being unpatentable over claims **1-10** of US Patent No. 11,252,039. Although the claims at issue are not identical, they are not patentably distinct from each other because the instant claims have a broader scope than corresponding to the patent system claims and it would have been obvious to one ordinary skill in the art before the effective filing date of the invention to omit the additional limitation in the patent claims to achieve the instant claimed limitation.

Instant claims	Patent claims
1. A system, comprising: - **a mobile system** having a first network zone	1. A system, comprising: - a vehicle having a first network zone and a second

and a second network zone of a different type than the first network zone; - a converged network device (CND) interposed between the first network zone and the second network zone, the CND comprising: - a policy manager circuit structured to interpret a policy comprising a network regulation description; - a configuration circuit structured to configure a first network interface circuit in response to the network regulation description, and to configure a gatekeeper interface circuit in response to the network regulation description; wherein the first network interface circuit is structured to regulate communications between end points of the first network zone and end points of the second network zone; and wherein the gatekeeper interface circuit is structured to regulate communications between end points of the first network zone with at least one of an external communications portal or an external device	network zone of a different type than the first network zone; - a converged network device (CND) interposed between the first network zone and the second network zone, the CND comprising: - a policy manager circuit structured to interpret a policy comprising a network regulation description; and - a configuration circuit structured to configure a first network interface circuit in response to the network regulation description, and to configure a gatekeeper interface circuit in response to the network regulation description, wherein the first network interface circuit is structured to regulate communications between end points of the first network zone and end points of the second network zone, and wherein the gatekeeper interface circuit is structured to regulate communications between end points of the first network zone with at least one of an external communications portal or an external device.

21. A system, comprising: - a vehicle having a first network zone and a second network zone of a different type than the first network zone; - a converged network device (CND) interposed between the first network zone and the second network zone, the CND comprising: - a policy manager circuit structured to interpret a policy comprising a network regulation description, wherein the network regulation description comprises a data request permission description comprising data values associated with data requestors, wherein at least a portion of the data requestors comprise end points of at least one of the first network zone or the second network zone; - a configuration circuit structured to configure a first network interface circuit in response to the network regulation description, wherein the first network interface circuit is further structured to regulate communications in response to the data request permission description; wherein the first network interface circuit is	1. A system, comprising: - a vehicle having a first network zone and a second network zone of a different type than the first network zone; - a converged network device (CND) interposed between the first network zone and the second network zone, the CND comprising: - a policy manager circuit structured to interpret a policy comprising a network regulation description; and - a configuration circuit structured to configure a first network interface circuit in response to the network regulation description, and **to configure a gatekeeper interface circuit in response to the network regulation description,** wherein the first network interface circuit is structured to regulate communications between end points of the first network zone and end points of the second network zone, **and** **wherein the gatekeeper interface circuit is structured to regulate communications between end points of the first network zone with at least one of an external communications portal or an external device.**

structured to regulate communications between end points of the first network zone and end points of the second network zone.	2. (Original) The system of claim 1, wherein the network regulation description comprises a data request permission description comprising data values associated with data requestors, wherein at least a portion of the data requestors comprise end points of at least one of the first network zone or the second network zone, and wherein the first network interface circuit is further structured to regulate communications in response to the data request permission description.

Conclusion

THIS ACTION IS MADE FINAL. Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the mailing date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to HAMZA N ALGIBHAH whose telephone number is (571)270-7212. The examiner can normally be reached 7:30 am - 3:30 pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Umar Cheema can be reached on (571) 270-3037. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/HAMZA N ALGIBHAH/
Primary Examiner, Art Unit 2456